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14 TENTATIVE RULING 9:15 a.m., Tuesday, July 7, 2027

RUBEN HERNANDEZ v. LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY [25STCV01197]

MOTION FOR SUMMARY JUDGMENT OF DEFENDANT LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY

NOTICE: OK [Pursuant to oral stipulation on 4/2/2026, the Court waived the MSJ notice period and advanced the 6/17/2026 hearing to 4/30/2026 to avoid a trial continuance. The MSJ hearing was later continued to 7/7/2026.]

TIMELINE: Premises liability action on public property

5/7/2024: Plaintiff Ruben Hernandez ("Plaintiff"), an employee of the security company Allied Universal, was assigned to provide security services at a train station operated by Defendant Los Angeles County Metropolitan Transportation Authority ("Metro"). (Perez Decl., Exh. D, at pp. 36:15-38:14.) Around 10:00pm, Plaintiff clocked out of work and was traveling home on a Metro-operated train through the Westlake/MacArthur Park Metro Station. On the train, Plaintiff was physically assaulted by another passenger, Cross-Defendant Lorenzo Byrd ("Byrd"). (Metro Exh. 4 [SAC], at p. 4.) Plaintiff alleges Metro failed to protect him because the train had insufficient non-policing safety measures in place at the time of the assault. (Id.; Metro Exh. 1.)

1/16/2025: Hernandez files the Complaint. (Metro Exh. 2.) The operative Second Amended Complaint ("SAC"), filed 8/29/2025, alleges causes of action for:

Negligence (Common Carrier)

Premises Liability (Gov. Code, § 835)

2/3/2025: Plaintiff files a workers' compensation claim with Allied Universal (Case No. ADJ20467043). (Metro Exh. 3.)

9/5/2025: Metro files its Answer to the SAC. (Metro Exh. 5.)

12/9/2025: Metro files a Cross-Complaint against Byrd for indemnity, equitable contribution, apportionment, and declaratory relief. (Metro Exh. 6.)

3/23/2026: Metro files this Motion for Summary Judgment as to the SAC, followed by Plaintiff's Opposition (4/9/2026) and Metro's Reply (4/17/2026).

4/28/2026: Pursuant to Plaintiff's Ex Parte Application, the Court continues the MSJ hearing to 7/7/2026 and orders the deposition of Metro's PMK to be completed on or before 5/8/2026.

5/11/2026: Metro's PMK is deposed.

6/10/2026: The Court continues Plaintiff's Ex Parte Application for an Order Shortening Time to Hear Plaintiff's Motion to Compel Further Deposition of Metro's PMK to be heard concurrently with the MSJ on 7/7/2026.

6/17/2026: Plaintiff files a Supplemental Opposition to the MSJ, which is followed by Metro's Supplemental Reply (6/26/2026).

TENTATIVE RULING: MOTION FOR SUMMARY JUDGMENT OF DEFENDANT LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY is DENIED for failure to provide discovery as ordered.

I. MOTION FOR SUMMARY JUDGMENT

Metro moves for summary judgment on the SAC in its favor on the grounds that the incident between Plaintiff and Byrd was neither foreseeable nor preventable by Metro and its employees. (Mot., at p. 2.)

There is no dispute that Metro, as a common carrier owed Plaintiff a duty of care. (Civ. Code, § 2100["A carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise to that end a reasonable degree of skill."].) "Common carriers bind themselves to carry safely those whom they take into their vehicles, and owe both a duty of utmost care and the vigilance of a very cautious person towards their passengers. Such carriers are responsible for any, even the slightest, negligence and are required to do all that human care, vigilance, and foresight reasonably can do under all the circumstances." (Acosta v. Southern Cal. Rapid Transit Dist. (1970) 2 Cal.3d 19, 26.)

"[T]he duty imposed upon carriers by Civil Code section 2100 includes a duty to protect passengers from assaults by fellow passengers." (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 785 (Lopez).) "This duty can only arise if in the exercise of the required degree of care the carrier has or should have knowledge of conditions from which it may reasonably be apprehended that an assault on a passenger may occur ... and has the ability in the exercise of that degree of care to prevent the injury." (Id. at p. 786.) "The fact that certain 'precautionary measures' would have the effect of protecting passengers from criminal assaults does not transform them into 'police protection services.'" (Id. at p. 792.)

Here, Metro argues that the attack on Plaintiff was neither foreseeable nor preventable because, as Plaintiff alleges, Byrd punched Plaintiff just one time and immediately exited the train, leaving inadequate time for the train operator to intervene. (Mot., at p. 6.) Metro also argues that at the time of the incident Plaintiff was still wearing his security guard uniform and was equipped with defensive weapons and handcuffs, so Metro's employee would have been justified in believing that Plaintiff was the security officer handling the incident. (Id. at pp. 6-7.)

Plaintiff responds that the foreseeability and preventability of the assault are questions of fact because sufficient evidence exists, or is likely to exist, to demonstrate that the Metro train operator (or other Metro employees) knew or should have

known that unsafe conditions were developing on the train prior to Plaintiff's assault such that the incident could have been predicted and mitigated. (Lopez, supra, 40 Cal.3d at p. 786.) For example, Byrd was loudly and aggressively harassing an elderly woman and panhandling on the Metro train even before he attacked Plaintiff. (Supp. Opp., at p. 3.) Plaintiff further argues that the Metro train line had a documented violence problem in the months preceding the attack and that Metro had multiple operational personnel assigned and stationed who failed to meet Metro's published safety standards. (Id. at pp. 3-4.) Plaintiff further contends that Defendants have still failed to adequately respond to discovery intended to clarify whether Metro designed or maintained its trains without any operational ability to observe developing violence in the train's passenger compartments. (Id. at p. 4.) Plaintiff continues to seek further discovery to determine the following relevant facts: (1) who was watching the Rail Operations Center (ROC) monitors when Byrd was harassing the woman before attacking Plaintiff; (2) whether CCTV at any of the stations along the Metro train line before the attack captured either when Byrd boarded or how long his aggressive behavior had been going on; (3) what the assigned (on-duty) security personnel were doing at the time of the attack; (4) whether the train operator had any means of observing what was happening in the cars behind them; and (5) why CCTV footage from this incident no longer exists in Metro's records. (Ibid.) These facts are essential to determining whether the foreseeability and preventability of Plaintiff's assault should be determined by the jury and are therefore integral to Plaintiff's defense against this motion.

The Court has already continued this MSJ hearing pursuant to Code of Civil Procedure section 437c, subdivision (h) to permit Plaintiff to conduct additional discovery on these factual questions and simultaneously ordered the deposition of Metro's PMK to be conducted by 5/8/2026. (Minute Order, 4/28/2026.) Although an initial deposition occurred on 5/11/2026, Plaintiff contends that Metro's PMK admitted that he had not prepared for the deposition and, thus, could not meaningfully answer Plaintiff's questions. (Ortiz Depo. Tr., at pp. 9:5-10:3, 10:5-10, 97:8-10, 121:2-7, 204:6-23; Perez Decl., ¶¶ 4, 6-8, 14-15, Exhs. B, D, G.) Plaintiff's expert witness has also submitted a declaration confirming that Metro's PMK deposition failed to provide the foundational factual testimony necessary for his intended analysis of transit-safety, particularly concerning prior incidents of violence and line- and station-specific crime trends, CCTV configuration/retention/preservation, dispatch/CAD/ROC materials, security staffing and actual deployment, Allied Universal reporting protocols, and hazard management. (Pl.'s Exh. G, ¶¶ 4-5.) In light of Plaintiff's position that the 5/11/2026 PMK deposition was not reasonably responsive to the deposition request, Plaintiff has since filed an Ex Parte Application for an order shortening time to hear Plaintiff's Motion to Compel Further Deposition of Metro's PMK, which is scheduled to be heard on the same date as this MSJ hearing. (Minute Order, 7/10/2026.) Accordingly, Plaintiff is now requesting relief under Code of Civil Procedure section 437, subdivision (i) for Metro's unreasonable failure to cooperate with the court-ordered deposition.

"If, after granting a continuance to allow specified additional discovery, the court determines that the party seeking summary judgment has unreasonably failed to allow the discovery to be conducted, the court shall grant a continuance to permit the discovery to go forward or deny the motion for summary judgment or summary adjudication. This section does not affect or limit the ability of a party to compel discovery..." (Code Civ. Proc., § 437c, subd. (i), italics added.) The same policies underlying Code of Civil Procedure section 437c, subdivision (h) pertain to subdivision (i). Specifically, "summary judgment is a drastic measure which deprives the losing party of trial on the merits." (Dee v. Vintage Petroleum, Inc. (2003) 106 Cal.App.4th 30, 34-35.) "To mitigate summary judgment's harshness," the Legislature intended the relief available under subdivisions (h) and (i) to be virtually mandatory, rather than discretionary. (Ibid.) "Where the opposing party submits an adequate affidavit showing that essential facts may exist but cannot be presented timely, the court must either deny summary judgment or grant a continuance." (Ibid.)

Here, as described above, Metro's MSJ raises a narrow issue: that no triable factual issues exist with respect to the foreseeability and preventability of the attack on Plaintiff. Metro's argument is premised on two primary inferences: (1) that Metro's train operator was unable to intervene because the attack was brief, and (2) even if the train operator could have intervened, the operator was reasonable in believing that Plaintiff himself was already responding to the scene as a security officer. These factual conclusions place Plaintiff's factual discovery squarely at issue, including but not limited to the extent to which the train operator and other Metro personnel had the ability to monitor the train's passenger compartment and/or communicate about potential security threats, the extent to which Byrd's movements were observable on the live CCTV footage prior to the incident, the extent to which Metro personnel could and did engage in internal dispatch/CAD/ROC/SOC communications, Metro's staffing records, and the extent of Allied Universal's duties. (Supp. Opp., at p. 5.) Such facts are directly relevant to the questions of whether the train operator did or should have had notice of Byrd's escalating conduct prior to the incident and whether Metro's employees had the mechanisms in place to meaningfully intervene in light of such notice. (Id. at p. 7.)

Under Lopez, if Metro had notice of Byrds' potential aggressive conduct, the question of whether the train operator "should not have taken some steps to maintain or restore order before tempers got so far out of control that he was powerless to

prevent the injury which occurred to plaintiff" is a factual question for the jury. (Lopez, supra, 40 Cal.3d at p. 786.) As a result, Plaintiff would be prejudiced by considering the merits of this MSJ prior to ensuring that he has had an adequate and meaningful opportunity to discover the facts pertaining to notice, including the extent to which passenger violence were known hazards on the specific Metro train line, what Metro knew or could have known before and during the incident between Byrd and Plaintiff, and what systems and personnel were in place and/or functional to detect and respond to escalating altercations. (Supp. Opp., at p. 7.) Accordingly, the Court agrees that the facts identified by Plaintiff are essential to his opposition to this MSJ.

The Court also finds that Metro has unreasonably failed to enable Plaintiff's discovery to be conducted. Metro's MSJ was originally set to be heard on 4/30/2026. The Court continued the hearing and ordered Metro to produce a PMK witness by 5/8/2026. As referenced above, when the deposition finally occurred on 5/11/2026, Metro's PMK admitted that he was not prepared: he had not yet reviewed any documents, had not performed any investigation into the noticed topics for the deposition, had not spoken to any individuals other than Metro's counsel, and had not even learned of Plaintiff's assault until just one week prior to the deposition. (Ortiz Depo. Tr., 9:5-10:3, 204:6-23.) This testimony confirms that Metro did not produce an adequately prepared witness to comply with the court-ordered deposition. (Supp. Opp., at pp. 8-9.) Plaintiff's pending Ex Parte Application also details examples of the delays and lack of cooperation exhibited by Metro's counsel in both procuring a knowledgeable deposition witness and in conducting the deposition itself, even after the Court already granted a continuance to permit the very deposition that is the subject of this Code of Civil Procedure section 437, subdivision (i) request. Under the circumstances, Metro's argument that it "allowed" the discovery by producing the requisite witness at the May 11 deposition is unpersuasive. (See Rep. p. 8.) Metro's production of a PMK witness who was ill-prepared to meaningfully respond to Plaintiff's questions constituted a significant interference with Plaintiff's intended discovery and created an undue delay in hearing this MSJ.

Finally, although the Court has already continued the trial from 5/11/2026 to 8/3/2026 to accommodate the need to conduct further discovery, the Court has repeatedly admonished the parties to avoid any further trial continuance. Plaintiff's opposition is quite clear that he is not seeking to continue the jury trial in this matter, which is less than 30 days away from this MSJ hearing. (The Final Status Conference is scheduled for 7/24/2026.) At this juncture, a further continuance to permit this motion to be heard on the merits would simply delay trial and reward Metro for its uncooperative tactics. Considering the totality of the circumstances, the Court finds that Metro's unreasonable delay in complying with the Court's order compelling the PMK deposition warrants the denial of summary judgment.

Therefore, Metro's motion for summary judgment is DENIED pursuant to Code of Civil Procedure section 437c, subdivision (i).

II. EVIDENTIARY OBJECTIONS

Metro objects to the Declaration of Hector C. Perez, including Exhs. H and I (Nos. 1-3, 6) and the Supplemental Declaration of Dr. Berkowitz (Nos. 4-5). The Court declines to rule on the following objections at this time: 1, 2, and 3. The following evidentiary objections are OVERRULED: 4, 5, and 6.

III. REQUESTS FOR JUDICIAL NOTICE

Metro requests judicial notice of the following documents:

Plaintiff's Claim for Damages (dated 7/16/2024) (Metro Exh. 1);

Plaintiff's Complaint (filed 1/16/2025) (Metro Exh. 2);

Case Information Sheet from Division of Workers' Compensation (Case No. ADJ20467043) (Metro Exh. 3);

Plaintiff's SAC (filed 8/29/2025) (Metro Exh. 4);

Metro's Answer to the SAC (filed 9/5/2025) (Metro Exh. 5);

Metro's Cross-Complaint (filed 12/9/2025) (Metro Exh. 6).

The Court takes judicial notice of the existence of Plaintiff's Claim for Damages filed with Metro pursuant to Evidence Code section 452, subdivision (c), but not the truth of the facts asserted therein.

The Court takes judicial notice of the existence of the above-identified pleadings in this matter and the existence of Plaintiff's Worker's Compensation case pursuant to Evidence Code section 452, subdivision (d), but not the truth of the facts asserted therein.

Defendant Los Angeles County Metropolitan Transportation Authority to serve notice of ruling.

This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order. TR emailed to counsel and posted to court's website on 7/6/26 at 2 p.m.